

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 4140

By: Manger

AS INTRODUCED

An Act relating to crimes and punishments; amending 21 O.S. 2021, Sections 1705, as last amended by Section 247, Chapter 486, O.S.L. 2025 and 1713, as amended by Section 249, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1713), (21 O.S. Supp. 2025, Sections 1705 and 1713), which relate to grand larceny and receiving stolen property; modifying elements of grand larceny and receiving stolen property; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 21 O.S. 2021, Section 1705, as last amended by Section 247, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1705), is amended to read as follows:

Section 1705. A. Grand larceny is a felony punishable as follows:

1. If the value of the property is less than One Thousand Dollars (\$1,000.00), the person shall be punished by imprisonment in the county jail for a term not to exceed one (1) year or by incarceration in the county jail for one or more nights or weekends

1 pursuant to Section 991a-2 of Title 22 of the Oklahoma Statutes, at
2 the option of the court, or by a fine not to exceed One Thousand
3 Dollars (\$1,000.00), or by both such imprisonment and fine;

4 2. If ~~the property is one or more firearms,~~ the property is
5 taken from the person of another, or the value of the property is
6 One Thousand Dollars (\$1,000.00) or more but less than Two Thousand
7 Five Hundred Dollars (\$2,500.00), the person shall be guilty of a
8 Class D3 felony offense and shall be punished by imprisonment as
9 provided for in subsections B through F of Section 20P of this
10 title, or by a fine not to exceed Two Thousand Five Hundred Dollars
11 (\$2,500.00), or by both such imprisonment and fine;

12 3. In the event the value of the property is Two Thousand Five
13 Hundred Dollars (\$2,500.00) or more but less than Fifteen Thousand
14 Dollars (\$15,000.00), the person shall be guilty of a Class D1
15 felony offense and shall be punished by imprisonment as provided for
16 in subsections B through F of Section 20N of this title, or by a
17 fine not to exceed One Thousand Dollars (\$1,000.00), or by both such
18 imprisonment and fine; or

19 4. If the property is one or more firearms or the value of the
20 property is Fifteen Thousand Dollars (\$15,000.00) or more, the
21 person shall be guilty of a Class C2 felony offense and shall be
22 punished by imprisonment as provided for in subsections B through F
23 of Section 20M of this title, or by a fine not to exceed One
24 Thousand Dollars (\$1,000.00), or by both such imprisonment and fine.

1 B. The person shall also be ordered to pay restitution to the
2 victim as provided in Section 991f of Title 22 of the Oklahoma
3 Statutes.

4 SECTION 2. AMENDATORY 21 O.S. 2021, Section 1713, as
5 amended by Section 249, Chapter 486, O.S.L. 2025 (21 O.S. Supp.
6 2024, Section 1713), is amended to read as follows:

7 Section 1713. A. Every person who buys or receives, in any
8 manner, upon any consideration, personal property of a value of One
9 Thousand Dollars (\$1,000.00) or more that has been stolen,
10 embezzled, obtained by false pretense or robbery, knowing or having
11 reasonable cause to believe the same to have been stolen, embezzled,
12 obtained by false pretense, or robbery, or who conceals, withholds,
13 or aids in concealing or withholding such property from the owner
14 shall, upon conviction, be guilty of a felony punishable as follows:

15 1. If the value of the personal property is One Thousand
16 Dollars (\$1,000.00) or more but less than Two Thousand Five Hundred
17 Dollars (\$2,500.00), the person shall be guilty of a Class D3 felony
18 offense and shall be punished by imprisonment as provided for in
19 subsections B through F of Section 20P of this title, or by a fine
20 not to exceed Five Hundred Dollars (\$500.00), or by both such fine
21 and imprisonment;

22 2. If the value of the personal property is Two Thousand Five
23 Hundred Dollars (\$2,500.00) or more but less than Fifteen Thousand
24 Dollars (\$15,000.00), the person shall be guilty of a Class D1

1 felony offense and shall be punished by imprisonment as provided for
2 in subsections B through F of Section 20N of this title, or by a
3 fine not to exceed Five Hundred Dollars (\$500.00), or by both such
4 fine and imprisonment; or

5 3. If the property is one or more firearms or the value of the
6 personal property is Fifteen Thousand Dollars (\$15,000.00) or more,
7 the person shall be guilty of a Class C2 felony offense and shall be
8 punished by imprisonment as provided for in subsections B through F
9 of Section 20M of this title, or by a fine not to exceed Five
10 Hundred Dollars (\$500.00), or by both such imprisonment and fine.

11 B. If the personal property that has been stolen, embezzled,
12 obtained by false pretense or robbery has a value of less than One
13 Thousand Dollars (\$1,000.00), the person shall, upon conviction, be
14 guilty of a misdemeanor punishable by imprisonment in the county
15 jail for a term not to exceed six (6) months.

16 C. Every person who, without making reasonable inquiry, buys,
17 receives, conceals, withholds, or aids in concealing or withholding
18 any property which has been stolen, embezzled, obtained by false
19 pretense or robbery, or otherwise feloniously obtained, under such
20 circumstances as should cause such person to make reasonable inquiry
21 to ascertain that the person from whom such property was bought or
22 received had the legal right to sell or deliver it shall be presumed
23 to have bought or received such property knowing it to have been so
24

1 stolen or wrongfully obtained. This presumption may, however, be
2 rebutted by proof.

3 SECTION 3. This act shall become effective November 1, 2026.

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5 60-2-14701 GRS 12/11/25

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